

## 24STCV13364 24STCV13364

County: los-angeles

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Case Number: 24STCV13364 Hearing Date: July 1, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

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SARAH Y. KANG, an individual; and DEBORAH E. KIM, an individual,

Plaintiffs,

vs.

KANG NAM RESTAURANT, a California Business, et al.,

Defendants.

Case No.:

24STCV13364

Hearing Date:

July 1, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER

RE:

PLAINTIFFS' SARAH Y. KANG AND DEBORAH  
E. KIM'S MOTION TO COMPEL COMPLIANCE WITH SUBPOENA DUCES TECUM

#### Background

On May 29, 2024, Plaintiffs

Sarah Y. Kang ("Kang") and Deborah E. Kim ("Kim") (collectively, "Plaintiffs") filed the Complaint against Defendants Kang Nam Restaurant ("KNR"), a California Business; Sang Hun Lee, an individual; Anne Y. Lee, an individual; Anne Y. Lee and Sang Hun Lee as Trustees of the Sang H. and Anne Y. Lee Trust (jointly, "Lee Defendants"), and DOES 1 through 100 (collectively, "Defendants"), inclusive for: (1) Negligence; (2) Premises Liability; (3) Negligent Infliction of Emotional Distress; (4) Assault; and (5) Battery.

On August 21, 2024, KNR

filed an Answer to the Complaint. On June 1, 2026, KNR filed a Cross-Complaint against Cross-Defendant Sakari Tucker ("Tucker") and DOES 1 through 5 (collectively, "Cross-Defendants").

On August 26, 2024, the

Lee Defendants filed an Answer to the Complaint.

On February 17, 2026, Plaintiffs

filed the instant Motion to Compel Compliance with Subpoena Duces Tecum. To date, no opposition has been filed.

#### Legal Standard

"If a subpoena requires

the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing

compliance with it upon those terms or conditions as the court shall declare, including protective orders.” (Code Civ. Proc., § 1987.1, subd.

(a).) “The following persons may make a motion pursuant to subdivision

(a): (1) A party . . .” (Code Civ. Proc., § 1987.1, subd. (b)(1).)

## Discussion

Plaintiffs move for an

order compelling non-party Jovi Electric LLC to comply with the Subpoena Duces Tecum (the “Subpoena”) personally served on September 3, 2025 on their custodian of records, Adrian Duran, Chief Executive Officer. (Ghorbani Decl., ¶2, Exs. A-B.)

The Complaint alleges, inter

alia, that on or about October 24, 2023, Plaintiffs went to the Kang Nam Restaurant located at 4103 West Olympic Blvd., Los Angeles, CA 90019 (the “Restaurant”) owned, controlled, and/or managed by Defendants. (Compl., ¶¶4-6, 18, 27.) Plaintiff parked their car in the designated parking lot with the signage “Kangnam Customer Parking Only,” across the street from the Restaurant located at 952 S. Bronson Avenue, Los Angeles, CA 90019 (the “Premises”). (Id., ¶¶21, 28.) Approximately 8:15 p.m., after finishing their meal at Restaurant, Plaintiffs approached their vehicles in the Premises, which was very dark and contained lights that were either broken or failing to illuminate the entire Premises. (Id., ¶¶30-31.) Upon approaching their parked vehicles an unknown assailant demanded they get on the ground and surrender their immediate belongings. (Id., ¶¶32, 34.) As Kim put her purse on the ground, the assailant began beating her causing multiple injuries including a fractured hip and head injury. (Id., ¶35.) Kang attempted to runaway but the assailant struck her repeatedly causing multiple injuries. (Id., ¶36.) Following the assault, Kim ran and screamed for help from nearby servers of the Restaurant while the assailant fled the Premises and Kang laid on the ground severely beaten. (Id., ¶37.) At all relevant times, Defendants knew or should have known that the Premises was susceptible to dangers such as violent attacks, and that security measures and proper lighting were necessary to ensure the safety of their patrons. (Id., ¶38.)

Here,

the records and information sought by the Subpoena concern lighting installations for the Premises; maintenance, repair, and inspection of the lighting installations on the Premises; and communications with employees and

Defendants for work performed on the Premises from January 1, 2020 to present. (Ghorbani Decl., ¶2, Ex. A.) As such, the records and information Plaintiffs' seek via the Subpoena are directly relevant to their claims alleged in the operative Complaint. Furthermore, Plaintiffs personally served Jovi Electric LLC's officer, Adrian Duran, with the Subpoena in accordance with Code of Civil Procedure Section 1987, subdivision (b). Jovi Electric LLC, by and through Mr. Duran, had until September 23, 2025 to produce the documents requested and until September 29, 2025 to serve any written objections to the Subpoena. (See Code Civ. Proc., § 1987, subd. (c).) Mr. Duran did not produce any of the documents requested and served no written objection. (Ghorbani Decl., ¶6.) Plaintiffs' counsel attempted to meet and confer with Jovi Electric LLC, by and through Mr. Duran on December 5 and 8, 2025. (Id., ¶¶4-5, Ex. C.) Moreover, this present motion and supporting papers were served on Jovi Electrical LLC and no opposition has been filed explaining why no objections and/or production of documents have been produced. Therefore, Plaintiffs have demonstrated that an order compelling compliance with the Subpoena is warranted.

#### Conclusion

Based on the foregoing,  
the Court GRANTS Plaintiffs' Sarah Y. Kang and Deborah E. Kim's Motion to Compel Compliance with Subpoena Duces Tecum.

Plaintiffs' Sarah Y. Kang and Deborah E. Kim are  
ordered to provide notice of this ruling.

DATED: July 1, 2026

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Hon. Teresa A.  
Beaudet

Judge, Los  
Angeles Superior Court